

STANDING ORDER No. 407/2012

**GRANT OF LICENCE/NO OBJECTION CERTIFICATE FOR
PERMANENT FIREWORKS SHOPS**

This Standing Order aims to lay down rules and procedures related to grant of Permanent Licence for fireworks shops and No Objection Certificate for fireworks shop whose licence is to be granted by the Joint Chief Controller of Explosives, North Circle, Faridabad, Haryana.

1. Derivation of powers:

As per section 146 (i) of the Delhi Police Act, 1978, the Commissioner of Police is empowered to exercise all powers which may be exercised by District Magistrate under the Acts mentioned in Schedule I, and the rules made there-under, which include the Explosive Act, 1884 and the Explosive Rules 2008.

Therefore, all the powers vested in the 'District Authority' as mentioned in the Explosives Act, 1884 and the Explosives Rules, 2008 are to be exercised by the Commissioner of Police, Delhi, which in case of permanent fireworks licences/No Objection Certificates, have been delegated to the Additional Commissioner of Police, Licensing, Delhi vide order No. 83-182/Spl. Cell/PHQ dated 01.02.2008.

Therefore, the permanent fireworks licences are to be granted by Additional Commissioner of Police, Licensing, Delhi upto a quantity of maximum of 100 kg of *manufactured fireworks (Division-2, sub-division-II as per Schedule I of Explosive Rules, 2008, which comprises high hazard fireworks like rocket shells, maroons, wheels, barrages, fountains, illumination pieces, distress signals, etc) and 500 kg of Chinese crackers/sparklers (Division-2, sub-division-I as per Schedule I of Explosive Rules, 2008, which comprise low hazard fireworks like sparklers, Chinese crackers, serpents etc.)*.

The licences for quantity exceeding 100 kgs of manufactured fireworks and 500kgs of Chinese sparklers/crackers are granted by the Joint Chief Controller of Explosive, Faridabad Haryana after receipt of No objection certificate issued by the Addl. Commissioner of Police, Licensing Delhi.

2. CONDITIONS:

Grant of Permanent fireworks licences/No Objection Certificate shall be so regulated that no fire accidents / incidents resulting in injury and loss of human life takes place. This should be done in accordance with the provisions of *The Explosives Act, 1884, The Explosives Substances Act,*

1908, The Explosives Rules, 2008, directions & guidelines of Hon'ble Supreme Court of India, the Explosives Department, Government of India, the Fire Department and the Environment Department, Government of NCT Delhi and other conditions as given below:

- i. Licences shall be granted only for a shop located on a commercial street or in a commercial shopping centre, as per the Master Plan Delhi- 2021 in accordance with Section 15.5 & 15.6.2 and 15.6.3. The list of notified commercial areas is given in supplement to MPD-2021, which is available in any book shop.
- ii. Minimum floor area required is 9 sq. metres and maximum floor area is 25 sq. metres.
- iii. No person below the age of 18 years and no person who is addicted to intoxication or of unsound mind shall be granted a licence.
- iv. The shops shall only be located on the ground floor of a building completely separated from other parts of the building by substantial walls.
- v. The shop shall not be situated in the sub level of basement or mezzanine floor.
- vi. The shop shall not be situated under the upper floor used for the purpose of dwelling.
- vii. The shop shall not be situated under or nearby any staircase or lift.
- viii. The licenced premises must have an independent entrance and exit. However, in *Babu Lal and Others Vs DCP Licensing and others*, the Hon'ble Supreme Court of India has ruled - "Normally shops have an opening which is used both for entry and exit - that it does not open into any other premises is what is important so that in event of any difficulty there is a way out."
- ix. The shops should have doors opening outwards. Alternatively, the doors may be provided with rolling shutters, but the same must be provided with stoppers, which must be functional.
- x. The road width in front of the shop must be a minimum of 12 metres, thus making it accessible for fire fighting.
- xi. The shop shall be at a distance of minimum 15 metres from any shop or premises used for storage of similar explosive, flammable or hazardous materials.
- xii. The shops should have no electrical apparatus or battery or oil lamp or similar equipment capable of producing spark or ignition and all electrical wiring in the shop should be fixed and effectively sealed or conduited or mechanically protected. The main switch or circuit breaker should be provided at the immediate accessible position outside the premises.

3. Documents to be submitted for obtaining licence/NOC (all in five sets):

- i. Application form (Form No. AE-5 as per Rule 113) of the Explosive Rules, 2008, (Copy of the form enclosed at **Annexure-A**)

- ii. Prescribed affidavit along with self attested photographs attested by the notary along with the documents. (Copy of the affidavit enclosed at **Annexure-B**)
- iii. Two photographs of the applicant, which are self attested.
- iv. Site plan of the premises: - The site plan should clearly show the approach road, electric wiring network, nearby structures and distances from nearby protected works as well as telephone junctions, transformers etc.
- v. Photograph of the premises from all directions depicting the clearance from other shops of similar nature, if any.
- vi. Proof of residence.
- vii. Proof of ownership of the proposed shop.
- viii. In case of a rented shop, NOC from the landlord along with the rent agreement on the affidavit duly attested by the notary public/civic agency with photographs of the landlord and the tenant.
- ix. A scrutiny fee of Rs. 200/- in cash (non-refundable) payable to the Addl. Commissioner of Licensing, Delhi at the cash counter of Licensing Unit.

4. Procedure for grant of licence :

- i. The application form for the permanent fireworks licences shall be available free of cost in the office of Additional Commissioner of Police, Licensing, Delhi in the prescribed format. It shall also be made available for download on the website of Delhi Police Licensing Unit.
- ii. The application form duly filled along with all the required documents will be submitted at the Office of Additional Commissioner of Police, Licensing.
- iii. A register will be maintained listing out the date of receipt of each application and each application has to be given a specific number.
- iv. All the documents will be scrutinised as per the Check List (**Annexure-C**).
- v. The following NOCs shall be sought to adjudge the suitability of place and applicant to carry out the trade:-
 - a) **NOC from Fire Department:-** to ascertain suitability of place from fire safety point of view in the interest of public safety at large and availability of the fire safety arrangements.
 - b) **NOC from Land owning agency:-** like MCD/DDA/NDMC/DUSIB/Delhi Cantonment Board to ascertain that the location of the shop/premises in the Commercial Street or commercial shopping centre as per Master Plan Delhi-2021 or any objection, if any, from municipal by-laws/land regulation point of view as per **Annexure-F**.

c) **NOC from Local Police:** - to ascertain suitability of the site from law and order point of view, verification of the character and antecedents of the applicant and verification of the documents submitted by the applicant on the proforma (**Annexure-D**).

i. After receipt of above reports, inspection of the premises shall be conducted by an officer of the Licensing unit as per **Annexure-E**.

vi. All the above reports shall be put up to Addl. CP/Licensing. In case, all the reports are positive, he shall approve the issuance of Licence/NOC as the case may be.

vii. The licence after due approval shall be issued as per **Annexure-G**, which may be up to 5 years. A licence fee of Rs 500/- per annum shall be charged while granting the licence.

x. A copy of the licence along with approved drawings granted by the office of Additional Commissioner of Police, Licensing, Delhi shall be forwarded to the Joint Chief Controller of Explosives, Faridabad, Haryana as per the Rules (Section 107 (7) of the Explosives Rules-2008).

x. The Additional Commissioner of Police, Licensing while refusing to grant licence shall record in writing the reasons for such refusal and communicate the same to the applicant. The applicant shall be given an opportunity of being heard before a decision to refuse the licence is taken. (Rule 114 of Explosives Rules, 2008)

i. **Appeal:** An appeal against the order of the Additional Commissioner of Police, Licensing, Delhi refusing to grant a licence or suspending or revoking a licence or varying the condition of a licence shall lie, with Special Commissioner of Police, Administration, PHQ who will decide the appeal (Rule 121 & 122 of the Explosives Rules-2008). A fee of Rs. 200/- shall be deposited either in cash or through Demand Draft. In case the appeal is upheld by the appellate authority, the fee shall be refunded to the appellant.

5. Procedure for renewal of Licence:

The licence granted by District Authority (Addl. CP/Licensing) shall be renewed every five years.

i. Every application for the renewal of licence shall be made so as to reach the licensing authority to renew the licence on or before the date on which the licence expires and if the application is so made, the licence shall be deemed to be in force until an intimation that the renewal of the licence is refused, has been communicated to the applicant (as per Rule 112, of the Explosives Rules-2008)

ii. No licence shall be renewed if the application for renewal is received by the licensing or renewing authority after three months of the date of its expiry.

6. Processing time:

On receipt of all the required documents, NOCs shall be sought from the concerned department/Units within a week. On receipt of NOC from all the departments/units, inspection shall be conducted within 15 days and final decision shall be taken within a month.

7. Conditions regarding sound pollution:

The conditions as envisaged under of Explosive Rules, 2008 shall be adhered to by the Licencees and the local police will ensure the same. Apart from the above conditions the following safety measures shall also be ensured:-

The Hon'ble Supreme Court of India in Forum for Prevention of Environment, & Sound Pollution vs Union of India vide order dated 18.07.2005 has ruled that

- a) *There shall be a complete ban on bursting sound emitting firecrackers between 10 pm and 6 am. It is not necessary to impose restrictions regarding the time of bursting of colour/light emitting firecrackers.*
- b) *Firecrackers shall not be used at any time in silence zones, as defined in S.O. 1046 (E) issued on 22.11.2000 by the Ministry of Environment and Forests. In the said Notification, Silence Zone has been defined as: "an area comprising not less than 100 meters around hospitals, educational institutions, courts, religious places or any other area which is declared as such by the competent District DCP."*

8. Do's & Don'ts for licencees and responsibility of local police:

At least 4 sand bags must be kept in the premises. Additional sand bags depending upon the size of the premises are also required to be kept.

- i. "No smoking" signboard should be displayed in each licenced premises.
- ii. At least two or more fire extinguishers of liquid/water CO2 type of 9 ltrs capacity each of ISI mark should be installed in the premises in sound working condition.
- iv. The use of crackers and smoking should not be allowed near the sale area i.e. within 50 mtrs area from the shop.
- v. Fire Hydrants should be located in the selected areas with the help of Licencees. The Fire Department & Delhi Jal Board may be associated to ensure that the location is satisfactory, adequate water pressure is maintained and is usable when it is required.
- v. Electricity supply companies like BSES/NDPL & Delhi Transco Co. etc. should be requested by the local police from time to time to check

overhanging of electricity wires for ruling out the possibility of any short circuit and spark in the areas where fireworks shops are situated.

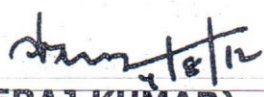
- vi . Fireworks shall not be placed or kept in a shop window used for display of goods.
- vii . Fireworks shall be kept in a spark proof receptacle or the original outer pocket in which they were received if that package is effectively sealed and in good order and condition.
- ~~ix . A receptacle or package containing fireworks shall be kept in a position away from and clear of shop traffic and to be separated from all articles of a flammable or combustible nature.~~
- ~~x . Where a package containing fireworks is opened for sale, the fireworks shall immediately be placed in a clean, dust free & spark proof receptacle.~~
- x . Any additional CFL or decorative lights with loose and hanging wire at the licenced premises shall not be displayed.
- xi . No licensee shall sell the fireworks from the pavement or any place outside of shop. Neither any licensee shall encroached the pavement or the abutting road with the goods/fireworks boxes of his shop nor will he place any sale counter on the pavement or the road.

9. Prosecution:

- i. All the Districts & PCR will maintain a record of the fire accidents in the shops/premises of fireworks. Necessary intimation about the above shall be sent to the Licensing Branch, Delhi Police as well as Joint Chief Controller of Explosive, Department of Explosives, GOI, Hall No. 502 & 507, B-Block, Old CGO Complex, NH-4, Faridabad, Haryana, immediately.
- ii. Necessary legal action against any person found in possession or selling explosives/fireworks without a licence as required under rule 88 of the Explosive Rules, 2008 shall be taken by the local police in accordance with section 9 (b) of the Explosives Act, 1884.

It has been observed in the past that if not checked regularly, violation of conditions laid down as per Explosives Rules as well as other conditions imposed by the licensing authority, are committed by the licensees. It shall be duty of the concerned district DCsP to ensure that all the laid down conditions are abided by the licencees on the ground and action is initiated as soon as any violation is noticed. It shall be onerous duty of district police to ensure that no mishap occurs and area is kept safe and secure from any fire hazard.

This Standing Order supercedes all other standing orders issued in this regard. No change shall be made except with written consent of the Commissioner of Police, Delhi.


(NEERAJ KUMAR)

Commissioner of Police

Delhi

OB No. 17 /RB/PHQ, dated 8-8-2012

No 2016-2131 /RB/PHQ dated, Delhi the 8-8-2012

Copy forwarded for information and necessary action to:-

1. All Spl. Commissioners of Police, Delhi
2. All Joint CsP, Addl. CsP Delhi
3. The Joint Chief Controller of Explosive, Department of Explosive, Hall No. 502 & 507, B Block, Old CGO Complex, NH-4, Faridabad, Haryana.
4. All Districts/Units Addl. CsP/Deputy Commissioners of Police Delhi.
5. Deputy Commissioners of NDMC, EDMC, SDMC, DCB, NDMC and DUSIB, Delhi/New Delhi.
6. The Chief Fire Officer, Delhi Fire Service, Connaught Place, New Delhi
7. All ACsP/Inspectors PHQ and HAR/PHQ with ten spare copies.

FORM AE-5

(See rule 113 of the Explosive Rules, 2008)

Application for approval or grant or amendment or transfer of licence in Form LE-5 as per article 5(a) to (f) of part 1 of Schedule IV.

_____ on behalf of _____ apply
for approval or grant or amendment of licence for the following purpose.

Purpose: (Write the purpose corresponding to particular article as per Schedule IV, Part I)

Name : I require licence in the following name and postal address:

a) Name in which licence is required to be granted (see notes below)

b) Status(1)

c) Age(2)

d) Postal address :

City _____ District _____ State _____ Pin Code _____ Police
Station _____ Railway Station/Steamer Ghat _____ Phone
_____ E-Mail _____ Fax _____

The proposed premises are situated at the following address :

Survey Number _____ City _____ District _____ State _____ Pin
Code _____ Police Station _____ Railway Station/Steamer Ghat _____ Phone
_____ E-Mail _____ Fax _____

Explosives proposed to be possessed:

Ss No.	Name and Description	Class	Division if any	Quantity at any one time
I				
II				
III				

5. If the explosives are to be used, furnish the particulars related to the purpose of use ____

6. Has the applicant been convicted under any offence or ordered to execute bond under Chapter VIII of Code of Criminal Procedure, 1973, during the last 10 years. If yes, please give details _____

7. (a) Particulars of other licences under Explosive Act, 1884 if any held by the application during the last 10 years. Yes/No

(b) Was any licence cancelled or not renewed? _____ (c) If yes, give details _____

I hereby certify that the above particulars given by me are correct.

Date _____

Signature of the applicant
(Authorized person in case of a Company)

Full Name _____

Address _____

Notes:

Please see the rule for the purpose and documents to be enclosed.

- 1) In case where application is made by a person other than an individual, the names and addresses of the occupier as per rule 2 and directors or partners or members, as the case may be, and specimen signatures of authorized person to be attached.
- 2) Passport size photographs of the occupier to be attached.
- 3) Any change in the above information should be immediately communicated to the licensing authority and authority renewing the licence.
- 4) Age to be given in case the applicant is an individual.

Statutory Warning: Mishandling and misuse of explosives shall constitute serious criminal offence under the law.

Affidavit

(for the grant of fireworks licence permanently)

Affix self
attested photo

(Specimen of affidavit to be submitted by applicants on non-judicial stamp paper of worth Rs. 10/- duly attested by a Notary Public for the grant of permanent fireworks licence)

I/we, _____ Son/Daughter/Wife of _____ presently
residing at _____ since _____ do solemnly
affirm and declare as follows:

1. That my date of birth is _____ (day ____ month ____ year __) (Attach copy of DOB)
2. That I am permanent resident of _____ (attach proof).
3. That I am medically fit. (attach a medical certificate issued by a registered MBBS Doctor).
4. That my nominee shall be Shri/Smt. _____ who is my _____ (relationship) and residing at _____
5. That I have applied for permanent fireworks licence at the proposed premises located at _____ (attach proof)
6. That I am/was not involved in any criminal case.
7. That I have never been externed from my place of stay by any judicial authority and neither am I a proclaimed offender of any state Govt. or of Delhi Police, and to the best of my knowledge there is no Red Corner Notice or any other Look Out notice pending against me.
8. That I have also no proceedings /cases instituted against me in the CBI, NCB, Enforcement Directorate, Directorate of Revenue Intelligence, Income Tax and Forest Department pending against me.
9. That I have also not been arrested, deported or involved in any illegal act in any other country where I have visited or resided.
10. That I have no other permanent or temporary fireworks licence already issued/applied for. If yes give details and attached documents in this regard.
11. I have applied for permanent fireworks licence previously _____ times. (If yes enclosed copy of earlier fireworks licence issued in favor of the applicant or the proposed premises.)

12.The proposed shop is located on a commercial street or in a commercial shopping centre as per Master Plan Delhi-2021 (attached proof). The sketch of the premises prepared by a drafts man is attached. Proof of ownership (tenancy in case of rented premises) is attached. This has a minimum floor area of 9sqmtr and maximum floor area 25sqmtr with pucca construction and it is not under or nearby any staircase/exit or lift. This has independent entrance and exit.

13.I have also attached self-attested two photographs and Rs.200/- as scrutiny fee of my application is for permanent fireworks licence.

14.There is no other fireworks shop, inflammable or hazardous materials or overhead high tension power lines within a distance of 15 mtrs. from my pucca shop.

15.No other items shall be kept/sold other then fire crackers in the shop.

16.The electric fitting of the shop is through conduit/concealed so that it shall be spark free.

17.The road width on the side of the premises is more than 12 metres with entry and exit facing the road.

18.That I will make requisite arrangements for keeping the stock of fire crackers in safe place and to avoid access of children and other unauthorized persons to the fire crackers in the larger public interest.

19.Th at I require a permanent fireworks licence because (Give full justification)_____

20.I shall always keep all fire safety arrangements and I will be liable for any m shappinging.

21.Th at I shall not employ children/juvenile in the shop.

22.I will ensure that the upper floor of the shop is not used as a dwelling unit.

The particulars furnished by me above are true & correct to the belief of my know edge and I have not concealed or misrepresented any facts.

DEPONENT

ATTESTED

Signature and official seal of notary public

Check List

<u>SL No</u>	<u>Document</u>	<u>Yes/No</u>	<u>Remarks</u>
1.	Application form (Form AE-5 as per Rule 113 of the Explosive Rules, 2008, Copy of the form enclosed at Annexure-A)		
2.	Prescribed affidavit attested by the notary along with the documents. Copy of the affidavit enclosed at Annexure-B)		
3.	Two self attested photographs of the applicant		
4.	Site plan of the premises. The site plan should clearly show the approach road, electric wiring network, nearby structures and distances from nearby protected works as well as Telephone junctions, Transformers etc. It should also depict the clearing distance from other temporary sheds giving the picture of the whole locality so that the site is clear for each individual site in conjunction with other sites.		
5.	Photograph of the premises from all directions depicting the clearance from other shops of similar nature, if any		
6.	Proof of residence		
7.	Proof of ownership / tenancy in case of rented premises with rent agreement and NOC from the land lord		
8.	Scrutiny Fee Rs. 200/- (non-refundable) payable to the Additional CP/Licensing), as applicable.		
9.	Fire NOC		
10.	Land owning agency NOC		
11.	Local Police NOC		
12.	Any temporary/permanent fireworks licence issued earlier in favour of the applicant or the proposed premises.)		

Copy for Police VerificationPart-A Particulars of Applicant

1. Full Name: _____
2. Aliases if any: _____
3. Father's Name _____
4. Date of Birth : _____
5. Temporary Address, Mention clearly whether tenant: _____
6. Permanent Address (Same as in Election Card/Ration Card): _____
Residing since: _____
Duration of Stay: - at permanent address : _____
at temporary address : _____
7. Occupation (Profession/Business/Govt./Private Service/Doctor etc.) _____
8. Telephone No _____ Income Tax/PAN No. _____
9. (a) Explosive proposed to be possessed and sold _____
(b) Name and Description and quantity _____
10. Name of nominee, relationship and address _____
11. Addresses and Date of Birth verified give details _____

12. Occupation of the applicant as verified give details _____
13. Whether any complaint filed against the applicant? If yes give details _____
14. Involved in criminal cases? If yes, give details:- _____
15. Whether arrested in any criminal cases? If yes, give details _____

16. Whether convicted in any criminal? If yes, give details _____

17. Whether acquitted in any criminal case, if yes what are the grounds (As per the details of register No.9 of P.S) give details _____
18. Whether preventive proceedings initiated to bound down the applicant for keeping good behaviour under Cr PC & D.P Act _____
19. Does the applicant figure on the BC list of the police station (as per details of register No.10 of the police station)? If yes give details _____
20. Does the name of the applicant figure in Register No. 17 of P.S.? if yes give details _____
21. Has the applicant been involved in cases with any other agency like CBI, Narcotics Control Bureau, D.R.I, Enforcement Directorate etc., which is in the knowledge of the SHO vide D.D entries of the P.S.for service of summons, execution of warrants etc.? if yes give details _____
22. Has the applicant filed any complaint regarding threat to his life or his family? If yes, give details _____
23. Verification of nominee (if any) _____
24. Any other remarks _____

Signature of SHO
(Write Full Name, Date and affix stamp)

**Format of NOC to be accepted from the Land owning
Agency i.e. MCD/DDA/NDMC/DCB/DUSIB**

Letter No. _____

Address of the Premises: _____

Inspection Proforma

SL. NO.	Points	Remarks
1.	Whether the shop/premise falls in the category of commercial area as per MPD-2021.	
2.	Whether the shop/premises is as per the provisions of Municipal by laws.	
3.	Whether the site falls in the category of illegal encroachment/demolition plan	
4.	Whether the shop/premise is as per building by-laws.	
5.	Any other remarks :-	

Signature of the NOC Issuing Officer (with seal)

Name: _____

Designation: _____

1. M/s _____
2. Name (s) of the proprietor / partners _____
3. Contact Numbers _____
4. Fireworks Licence No. _____ (to be) / issued by _____
5. Date & time of inspection _____
6. Quantity authorised Fireworks _____ Sparklers _____
7. Quantity found Fireworks _____ Sparklers _____
- during checking/(or applied for in case of fresh licence application)
8. **Fire safety requirements for premises involving sale/ storage of fireworks**
- Remarks**
- a) Number of Fire extinguishers _____
- b) Number of sand bags available _____
- c) Number of Water Buckets available _____
- d) Minimum floor area (9 sq. mtr or less) _____
- e) Maximum floor area (25 sq. mtrs or excess) _____
- f) Any other premises within 15 mtrs used for similar explosives /flammable or hazardous material, if so, licence number with details of premises _____

- g) Type of Electric wiring and electric fitting _____
(Conduit/concealed /Spark proof/Loose)
- i) Any other trade/mercantile along with fireworks, if so, the details thereof

- j) Any Child labour _____
- 09 Whether the premises/shop is located on a commercial street or in a commercial shopping centre as per Master Plan Delhi-2021 _____

10. Construction features:-

- a) Whether shop is under staircase/means of exit: _____
- b) Whether shop is only at ground floor _____
- c) Whether shop has independent entrance and exit _____
- d) Whether shop is used only for possession and sale of fire works and
not used for other purposes _____

e) Whether the shop has pucca construction. _____

f) Whether upper floor are used for dwelling _____

1. Signage Board like No Smoking Board/
DO's & DON'T's displayed or otherwise.

Yes/No

2. Noise level mentioned on fireworks packets or not

Yes/No

3. Encroachment on pavement

Yes/No

(In case of yes, please mention what type of encroachment)

4. Any other discrepancy noticed _____

In case of any discrepancy noticed, whether local police informed or otherwise.

If so D. D. No. _____ dated _____ P.S. _____

Signature of Inspecting Officer,

Points for inspection

1. The premises/shops/sheds in which such licences are to be granted should be strictly prohibited from selling other items / articles.
2. The premises should be accessible by fire tenders and their hosepipes.
3. There should be no loose electric wiring in the premises. No oil lamps/gas lamps or naked light shall be used.
4. Shops should have independent entry/exit.
5. No sale of fireworks will be allowed on footpath/pavement.
6. Explosives should not be hawked, sold or exposed for sale on any highway, street, public thoroughfare or public place.
7. Display of fireworks shall not be allowed within 50 metres of any shop of premises.

Licence to possess and sell manufactured fireworks

(Quantity not exceeding 500 kilograms of Chinese crackers/ sparklers of Class-7, Division-2, sub-division-I and 100 kilograms of manufactured fireworks of Class-7, Division-2, sub-division-II)

(Form LE-5, see also Rule 107 of Explosive Rules 2008 and article 5(a) to (f) of schedule IV)

Affix self attested photo

LICENCE NO _____

Fee Rs. _____

1. Licence is hereby granted to:

Name _____

Postal Address _____

City _____ District _____ State _____ Pin Code _____

Police Station _____ Railway Station/Steamer Ghat _____

Phone _____ E-mail _____ Fax _____

2. Status of Licencee: _____

3. Licence is valid for following purpose:

4. Licence is valid for the following kinds and quantity of explosives:

(Name, description, Class, Division, sub-division, quantity at any one time _____)

_____)

5. The licenced premises shall conform to the following drawing(s):

Drawing No. _____ dated _____

Drawing No. _____ dated _____

Drawing No. _____ dated _____

6. The licenced premises are situated at following address:

Survey Number _____ City _____ District _____ State _____

Pin Code _____ Police Station _____ Railway Station/ Steamer Ghat _____

Phone _____ E-Mail _____ Fax _____

7. The licenced premises consist of following facilities:

8. The licence is granted subject to the provision of Explosives Act, 1884 as amended from time to time and the Explosives Rules, 2008 framed there under and the conditions, and annexures _____

(1) Drawings (showing site, constructional and other details) as stated in serial no. 5 above.

(2) Conditions of this licence signed by the licensing authority.

9. This licence shall remain valid till _____

This Licence is liable to be suspended or removed for any violation of the Act or Rules framed thereunder or the conditions of this licence as set forth under SET-X to Set-XV wherever applicable, referred to in Part 4 of schedule V or if the licenced premises are not found conforming to the description shown in the plans and annexure attached hereto.

Dated the _____

Signature, Designation and seal of licensing

Statutory Warning:- Mishandling and misuse of explosives shall constitute serious criminal offence under the law.

Conditions for Fireworks Licence

- 1) The fireworks shall be kept in a substantial brick stone or concrete building, made of non-flammable material, which is closed and secured so as to prevent unauthorized persons from having access thereto.
- 2) No oil burning lamps, gas lamps or naked lights shall be used in the shed/building or within the safety distance of the sheds/building for the purpose of lighting. Any electrical light, if used shall be fixed to the wall or ceiling and should not be suspended by flexible wire. Switches should be fixed rigidly.
- 3) The licensee and the employee shall be conversant with procedure to be taken during the emergency within the premises.
- 4) Free access to the licenced premises shall be given at all reasonable time to any inspecting or sampling officer and every facility shall be afforded to the officer for ascertaining that the provisions of the Act and the Rules and the conditions of this licence are duly observed.
- 5) If the licensing authority informs in writing, the holder of the licence to execute any repairs or to make any additions or alterations to the licenced premises or machinery, tools or apparatus or carry out recommendations which are in the opinion of such authority may pose unacceptable risk and so necessary for the safety of either on-site or off-site of the premises or persons, the holder of the licence shall execute the recommendations and report compliance within the period specified by such authority.
- 6) Accidents by fire or explosion and losses, shortage or theft or explosives shall be immediately reported to the nearest police station and the licensing authority and local office of the licensing authority.
- 7) The licensee shall purchase authorized fireworks as mentioned in the list of authorized explosives from a licenced factory or company for possession and sale from the shop.
- 8) Fireworks/colour/star matches containing chlorates shall be separated from other type of fireworks by intervening partition of such substance and character or by such intervening space, as well effectually prevent explosion or fire in the one communicating with other.
- 9) All sales of fireworks under this licence must be made in the premises described in the licence.
- 10) No fireworks containing chlorate except paper caps or amerces or colour match or fireworks approved by Chief Controller shall be kept in the premises.
- 11) The licensee shall keep records and accounts of all explosives in stock and of all sales in form below as the licensing authority may from time to time direct and shall exhibit his stock and his books and records to any of the officers authorized under these rules, whenever such officer may call upon him to do so.

Date	Opening balance	Quantity of fireworks purchased	Name and licence number of the licensee from whom purchased	Quantity of fireworks sold	Closing balance
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12) No fireworks capable of generating noise exceeding level as under shall be stored in the premises and sale from the premises:

(a) 125dB(AI) or 145 dB(C)pk at 200 metres distance from the point of bursting shall be prohibited.

(b) for individual fire-cracker constituting the series (joined fire-crackers),
the above mentioned limit be reduced by $5 \log_{10} (N)$ dB, where N=
Number of crackers joined together.

13) The building or receptacle in which explosive is kept must be used only for keeping of such explosives and for no other purpose whatsoever.

14) Explosives of different description which may be kept under this licence shall be separated by an intervening partition of such substance and character, or by such intervening space, as will effectually prevent explosion or fire in the one communicating with the other :
Provided that -

a) Small arms nitro-compound and safety fuses belonging to this 1st division of the 6th [Ammunition] Class may be kept with each other without any intervening partition or space;

b) The various explosives of the 1st division of the 6th [Ammunition] Class may be kept with each other without intervening partition or space; and

c) The various explosives of the 7th [Fireworks] Class other than those containing chlorates may be kept with each other without any intervening partition or space.

15) Any quantity exceeding 25 Kgs. of an explosive of the 1st Division of the 6th [Ammunition] Class or of the 2nd Division of the 7th [Fireworks] Class and all other explosives exceeding 0.5 Kg. must be kept in a substantial bag, canister or case made and closed so as to prevent any explosives from escaping and shall be otherwise packed and marketed in accordance with the requirements of Rules 14 and 15 of the Explosives Rules, 2008.

16) No tools, implements, balance, weights, etc. made of iron or steel shall be kept at any time in the licenced premises, and no person on the licenced premises shall have any iron or steel in his possession, or attached to or on his boots or shoes.

17) The licensee shall not sell the fireworks from outside of the shop or by encroaching on the footpath/pavement etc.

18) The licensee shall not stock the fireworks at any unauthorized place.

Signature, Designation and seal of licensing

I agree with the terms and conditions mentioned above and undertake to ab de by and implement them on ground.

Signature of the licensee.

Annexure - H

Office of the Additional Commissioner of Police: Licensing
Police station (1st Floor) PS Defence Colony: Delhi.

No. _____/...../..... dated, New Delhi, the _____

To _____

Sh. _____

Subject: Regarding rejection of your application for grant of permanent fireworks licence/NOC.

Sir,

With reference to your application dated _____ regarding grant of permanent fireworks licence/NOC at _____.

In this regard, it is intimated that your request could not be acceded to, on the following grounds:-

1. _____

2. _____

3. _____

In case, you are aggrieved/not satisfied with the above decision, you may appeal before the Special Commissioner of Police, Administration at Police Headquarters, I.P. Estate, New Delhi within 30 days along with a fee of Rs. 200/- in cash or Demand Draft (The amount will be reimbursed in case the appeal is upheld by appellate authority).

Yours faithfully,

Addl. Commissioner of Police,
Licensing Unit, Delhi